

Sarfaraj v. State of U.P. (PVVNL demand notice — EE hearing, then s.127)

Allahabad High Court · Division Bench · 7 February 2020 · WRIT - C No. - 2256 of 2020 · **Writ disposed without quashing the demand; petitioner to appear before the Executive Engineer with objections; speaking order in four weeks; coercive action stayed eight weeks; s.127 if still aggrieved.**

HEADNOTE

A Division Bench disposed of a writ seeking certiorari to quash a PVVNL demand notice dated 14.9.2018 without examining the demand on merits. It directed the petitioner to appear before the Executive Engineer with objections and evidence, required a speaking and reasoned final order within four weeks, stayed coercive action for eight weeks or until that disposal (whichever earlier), and left any remaining grievance to the statutory appeal under Section 127 of the Electricity Act, 2003. Non-appearance would revive the demand automatically.

FACTUAL SUMMARY

Sarfaraj petitioned the Allahabad High Court to quash a demand notice dated 14 September 2018 issued by the Executive Engineer, Paschimanchal Vidyut Vitran Nigam Limited, Vidyut Vitran Khand 1st, District Bulandshahr. He alleged that the respondents were taking coercive action on that demand without an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. After two listing orders, counsel for the electricity department appeared and the Division Bench heard the writ on 7 February 2020.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

demand-notice-hearing-then-section-127-appeal

HOLDING

A writ seeking quashing of a licensee's demand notice, on the plea of coercive action without hearing and without following the U.P. Electricity Supply Code, 2005, is disposed of without examining the demand on merits by directing the consumer to appear before the Executive Engineer with objections and evidence, requiring a speaking and reasoned final order, granting limited protection against coercive action, and relegating any further grievance against that final order to the statutory appeal under Section 127 of the Electricity Act, 2003. Failure to appear revives the demand automatically. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing the Executive Engineer to consider objections to a PVVNL demand notice and pass a speaking final order, the Court left any remaining grievance to the statutory appeal under Section 127 rather than examining the demand in writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE DEMAND NOTICE DATED 14.9.2018

Left to a speaking order of the Executive Engineer, with Section 127 thereafter. ¶ 1

NOT DECIDED — ALLEGED NON-COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

Invoked generally; no clause was identified or construed. ¶ 1

